

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Criminal Appeal No. 7082 of 2013

Md. Washim.

...Convict-Appellant.

-VERSUS-

The State.

... Respondent.

Present

Mr. Justice Mamnoon Rahman

Ms. Nasima Akter Shanu, Adv.

... For the appellant.

Mr. Md. Taifoor Kabir, DAG with

Mr. Md. Lokman Hossain, AAG

Mr. Md. Hatem Ali, AAG

....For the State.

Heard on: 14.11.2023

And

Judgment on: 21.11.2023

This appeal is directed against the judgment and order of conviction and sentence dated 08.04.2012 passed by Special Sessions Judge Adalat No. 5, Dhaka in Special Session Case No. 169 of 2009 arising out of Badda Police Station Case No. 16/09 dated 10.05.2009 corresponding to G.R. No. 155 of 2009 convicting the appellant under Section 22 (Ga) of the Madak Drabya Niyontron Ain, 1990 and sentencing him to suffer rigorous imprisonment for 4 (four) years and to pay fine of taka 5,000/- (five thousand) in default to suffer another period of 6 (six) months more.

The prosecution case, in short, is that, one A.S.I. Md. Imanur Rahman along with his team lodged a First Information Report on 10.05.2009 with Badda Police Station against the appellant alleging

inter-alia that on secret information they were conducting patrol in the adjacent area and ultimately apprehend the accused persons and recovered the incriminating articles from their constructive possession and hence the case. The Badda Police Station registered the case as Badda Police Station Case No. 16/09 dated 10.05.2009 and proceeded with the investigation. After investigation the police submitted charge sheet being No. 220 dated 07.06.2009. As the case was ready for trial the same was transmitted to the court of Special Sessions Judge, 5th Court, Dhaka being Special Sessions Case No. 169 of 2009. During trial the prosecution adduced as many as 4(four) witnesses and the defence adduced none. The trial court after exhaustive all the procedures vide the impugned judgment and order convicted and sentenced the appellant and hence the appeal.

Ms. Nasima Akter Shanu, the learned counsel appearing on behalf of the appellant submits that the court below without applying its judicial mind and without considering the facts and circumstances, most illegally and in an arbitrary manner passed the impugned judgment and order of conviction and sentence which requires interference by this court. She submits that admittedly this is a case of no evidence and the prosecution failed to place the charge against the appellant beyond all reasonable doubt. She further submits that the trial court failed to appreciate the legal proposition regarding constructive possession which is very much absent in the case in hand as much as

there is no independent credible witness to prove the charge against the appellant beyond all reasonable doubt.

Mr. Mohammad Taifoor Kabir, the learned Deputy Attorney General appearing on behalf of the respondent-state vehemently opposes the appeal. He submits that courts below on proper appreciation of the facts and circumstances, materials on record, evidence both oral and documentary passed the impugned judgment and order passed by the courts below which requires no interference by this court.

I have heard the learned Advocate for the appellant as well as the learned Deputy Attorney General for the state. I have perused the impugned judgment and order of conviction and sentence passed by the court below, Memorandum of appeal as well as LC Records.

On perusal of the same, it transpires that the present appellant stood charge for an offence committed under section 22(G) of the Madak Drobboya Niyontron Ain, 1990 for possessing the incriminating articles, namely Beers. The contention as raised by the prosecution is that, during the regular patrol on secret information they came to know that the present appellant selling Beer in the said area and they apprehended and recovered the incriminating articles.

It transpires that after filing of the case the police submitted charge sheet and the trial court proceeded with the case. During trial the prosecution adduced 4(four) witnesses. P.W. 1 who is the informant in his deposition supported the case narrated in the First Information

Report, however, he could not be cross-examined due to absence of the appellant. P.W. 2 is a formal witness who filled up the F.I.R Column. P.W. 3 is a member of the raiding party and he supported the version as stated by P.W. 1. P.W. 4 who is a seizure list witness and he stated that he was working in a nearby college and he put his signature in the seizure list and the incriminating articles were recovered from his possession.

So, on meticulous perusal of the aforesaid testimonies, it transpires that they could not be a cross-examined because of the absence of the accused appellant. The main allegation is against the appellant is that for possessing incriminating articles namely alcoholic products with in violation of section 22(Ga) read with section 10(1) of the Act of 1990. As per the said provision of law for carrying or producing or consumption subject to certain restriction are illegal and subjected to punishment. For proving a case for possessing such articles a heavy duty cast upon the prosecution to prove the constructive and exclusive possession of the incriminating articles. It transpires in the present case in hand that certain articles were recovered from the body of appellant, named Wasim and the rest in a bag holding by the second appellant. On meticulous perusal of the evidence, it transpires that apart from the P.W. 4 there is no independent or credible witness to prove the charge beyond all reasonable doubt though there are many cited witnesses in the charge sheet. Also on careful scrutiny of the testimony of P.W. 4 it transpires that his deposition is a mechanical one and there

is no attempt on the part of the prosecution to prove the exclusive and constructive possession of the incriminating articles by the appellant which creates serious doubt in the prosecution case. Hence, I find substance in the instant appeal.

Accordingly, the appeal is allowed. The impugned judgment and order of conviction and sentence passed by the trial court is hereby set aside. The appellant is discharged from his bail bond and the appellant is acquitted from the charge leveled against him.

Send down the L.C. Records to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman, J:)

Emdad.B.O.